

Founder Agreement Template

Mitsue Project — Founding Members

Draft for discussion — not a final legal document

Important Note

This is a **template for an early-stage, informal founder agreement** designed to align expectations between founding members **before** formal NPO/Ippan Shadan Hojin incorporation. Once the legal entity is established, formal bylaws (定款) will supersede this document.

This is not a substitute for legal review. Before any founder signs, both parties should review with a Japanese lawyer or 行政書士. This template is meant to surface and resolve key questions early — not to replace formal legal documentation.

Founder Agreement

This Agreement is entered into between the founding members of the **Mitsue Project** ("the Project"), an initiative to establish an integrated sustainable energy, forest restoration, and digital infrastructure project in Mitsue Village, Nara Prefecture, Japan.

Founding Members:

1. _____ (hereafter "Founder A")
2. _____ (hereafter "Founder B")
3. _____ (hereafter "Founder C") [additional members as applicable]

Effective Date: _____

Article 1 — Purpose and Mission

The Founders share commitment to the mission of the Mitsue Project as set out in the Founding Charter dated _____. Each Founder has read, understood, and supports this Charter.

Article 2 — Roles and Responsibilities

Each Founder agrees to contribute to the Project in the following capacity. Roles may evolve as the Project grows but initial commitments are:

Founder	Initial Role	Time Commitment	Compensation
Founder A	[e.g. Representative Director]	[e.g. ~10 hours/week]	[Volunteer / stipend / TBD]
Founder B	[e.g. Technology Lead]	[hours/week]	[Volunteer / stipend / TBD]
Founder C	[e.g. Forestry Liaison]	[hours/week]	[Volunteer / stipend / TBD]

Director compensation note. The Representative Director's compensation *target* is **¥300,000/month (¥3.6M/yr)** — a defensible full-time-equivalent figure for rural Japan. This is a *target norm, not a legal requirement*: a 一般社団法人 director may legally be unpaid. If and when the Representative Director is paid, the amount must be set by 社員総会 (**members' meeting**) **resolution** after incorporation, and may not be self-determined. Compensation is phased per funding availability: volunteer/nominal during Phase 0–1; partial stipend from Phase 2 once founding capital and first grants are confirmed; full ¥300k/mo target when Phase 2 grants (¥30–50M) land. This phasing is documented in the EVM Plan §13 and will be formally resolved at Baseline Rev 2 (December 2026). See sources: <https://www.koueki-houjin.net/shadan/hosyu.html> · <https://www.koueki-houjin.net/shadan/kyuyo.html>
Founders agree to communicate proactively if their availability or commitment changes.

Article 3 — Decision-Making

Until formal incorporation, decisions of the founding group shall be made as follows:

- **Routine decisions** (operational, day-to-day): may be made by the relevant Founder in their area of responsibility.
- **Significant decisions** (financial commitments above ¥100,000, public communications, partnerships, hiring): require consensus among all Founders.
- **Major decisions** (mission changes, founder additions or departures, legal incorporation): require unanimous written agreement.

If consensus cannot be reached, Founders agree to seek mediation from a mutually trusted advisor before any unilateral action.

Article 4 — Intellectual Property

- Any intellectual property developed by Founders specifically for the Project shall be owned by the Project (once incorporated) or held collectively by the Founders (until incorporation).

- Any intellectual property a Founder brings to the Project from prior work remains their property; they grant the Project a perpetual, royalty-free license to use it for Project purposes.
- All technical knowledge, designs, and data produced for the Project shall be released under open licenses (Creative Commons or equivalent) consistent with the Project's open-knowledge principles.

Article 5 — Financial Contributions and Liabilities

- Founders are not personally liable for Project debts or obligations beyond their own commitments.
- Initial financial contributions by Founders shall be documented and treated as either donations, loans, or capital contributions, as agreed in writing for each contribution.
- No Founder may unilaterally commit the Project to financial obligations exceeding ¥100,000 without consensus.

Article 6 — Confidentiality

Founders agree to keep confidential:

- Sensitive partner negotiations
- Personnel matters
- Donor information not yet public
- Any other matters explicitly designated as confidential

This obligation continues for two years after a Founder's departure from the Project.

Article 7 — Conflict of Interest

Founders shall disclose any conflicts of interest, including:

- Other organizational affiliations relevant to the Project's work
- Family or business relationships with Project partners or vendors
- Financial interests in companies the Project may engage with

Conflicted Founders shall recuse themselves from related decisions.

Article 8 — Departure of a Founder

If a Founder wishes to leave the Project, they shall:

- Provide at least 60 days written notice where possible
- Cooperate in transition of responsibilities
- Return any Project materials in their possession
- Abide by the confidentiality provisions of Article 6

A departing Founder shall not be entitled to any financial compensation beyond what was previously agreed in writing.

Article 8a — Continuity & Succession

The project's continuity shall not depend on the availability of any single founder.

1. **Incapacity or departure.** On a key founder's incapacity (medical, legal, or extended absence from Japan) or departure, the remaining founders and advisory board shall appoint an **interim Representative Director within 30 days**, selected for their ability to maintain the project's mission and stakeholder relationships.
2. **Documented processes.** The Representative Director shall maintain up-to-date documentation of: (a) all active stakeholder and funder relationships; (b) financial accounts, passwords, and access credentials in a secure shared location accessible to at least one other founder; (c) the EVM baseline, grant pipeline, and open work items. This documentation shall be reviewed at least quarterly.
3. **Project survival test.** The project is considered continuity-capable when: a JP co-founder is in place; processes are documented per (2) above; and a minimum of one other active board or founding member has been briefed on the operational state.
4. **Founding story and IP.** Any project work product (documents, designs, data) already published under open licence by a departing founder remains available to the project. Personal networks introduced to the project by a founder may not be weaponised against the project by that founder after departure.

Article 9 — Removal of a Founder

A Founder may be removed from the founding group by unanimous vote of the remaining Founders, only in cases of:

- Serious breach of this agreement or the Founding Charter
- Conduct that materially harms the Project's reputation or mission
- Sustained inability or unwillingness to fulfill agreed responsibilities

A Founder facing removal shall have the opportunity to be heard before any vote.

Article 10 — Transition to Formal Entity

The Founders agree that upon incorporation of the Project as a 一般社団法人 or other legal entity:

- This Agreement shall be replaced by formal bylaws (定款)
- Founders shall transfer any Project assets to the legal entity
- Each Founder shall be considered for, but not guaranteed, a role in the formal organization

Article 11 — Dispute Resolution

Founders agree to resolve disputes in the following order:

1. Direct discussion between the Founders involved
2. Mediation by a mutually agreed third party (a respected advisor or community member)
3. Formal mediation through the Japan Arbitration Association or equivalent body
4. Legal action only as a last resort

Article 12 — Governing Law

This agreement is governed by the laws of Japan. The agreement is drafted in both English and Japanese; in case of discrepancy, the **Japanese version shall prevail** for matters relating to interpretation under Japanese law.

Article 13 — Amendments

This agreement may be amended only by unanimous written agreement of all current Founders.

Signatures

By signing below, each Founder confirms that they have read this Agreement, had opportunity to seek independent advice, and accept its terms.

Founder A: _____ **Date:** _____

Founder B: _____ **Date:** _____

Founder C: _____ **Date:** _____

Appendix — Topics for Discussion Before Signing

These are common founder-agreement issues that benefit from explicit conversation **before** signing. We strongly recommend the founding group discusses each item:

1. **What if Rob has to leave Japan?** — now addressed in Article 8a (Continuity & Succession); confirm the interim Representative Director process and credential-sharing location are in place before Phase 1
2. **What if a major funder requests changes** that conflict with the Charter?
3. **How do we handle media requests** — who speaks for the Project?
4. **What happens to Rob's existing relationships** (Safecast, YR-Design) — are these separate?
5. **What is the role of the village** in formal governance? Advisory? Veto power?
6. **How do we add new founders** later?
7. **What if Joi Ito or Ray Ozzie wishes to become more than an advisor?**
8. **At what stage do we start paying salaries**, and to whom first?
9. **What if a founder's personal financial situation changes** and they need to monetize their contribution?
10. **How do we handle disagreement** about the pace of public announcements?

These conversations are uncomfortable but vastly easier now than when the Project has money, partners, and public visibility.

Draft prepared April 2026 — to be reviewed by qualified Japanese legal counsel before execution.